

Court No. - 21

Case :- WRIT - C No. - 10538 of 2023

Petitioner :- Sagar Gupta

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Raj Nath Bhakta, Binod Kumar Yadav

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Umesh Chandra Sharma, J.

The petitioner has challenged the demand notice dated 27.12.2022, issued by respondent no. 2 for recovery of a sum of Rs. 67,120/- from the petitioner as recovery of electricity dues in a case of alleged theft of electricity.

The brief holder of Sri Chetan Chatterjee, learned counsel for the respondent Electricity Department, states that the order of final assessment has been withdrawn and that the respondents will pass a fresh order after providing opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Umesh Chandra Sharma, J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.3.2023

Jaideep/-